

MUTUAL NONDISCLOSURE AGREEMENT

This MUTUAL NONDISCLOSURE AGREEMENT (this “**Agreement**”), is made and entered into as of _____, 2026, by and between ZOE AI, Inc., 16192 Coastal Highway, Lewes, Delaware 19958 (“**ZOE AI**”), and the undersigned (the “**Counterparty**”).

WHEREAS, ZOE AI wishes to make a presentation and have a discussion with Counterparty (the “**AI Discussion**”) between the parties or their affiliates, and in connection with these discussions or such AI Discussion either party (in such capacity, the “**Disclosing Party**”), directly or indirectly through its Representatives (as defined below), may disclose or has disclosed to the other party (in such capacity, the “**Recipient**”) or its Representatives certain of the Disclosing Party’s Confidential Information (as defined below) solely for purposes of evaluating, negotiating and implementing the AI Discussion (the “**Approved Purpose**”).

NOW, THEREFORE, in consideration of the mutual covenants contained herein, and for other good and valuable consideration, the sufficiency of which is hereby acknowledged, the parties hereto agree as follows:

1. Confidential Information. The term “**Confidential Information**” shall mean, any non-public, confidential, or proprietary information disclosed or made available by or on behalf of a party (the “**Disclosing Party**”) to the other party (the “**Recipient**”), whether before or after the date of this Agreement, in any form or medium (including written, oral, electronic, visual, or demonstrative), in connection with a demonstration or discussion of Disclosing Party’s legal AI system or related technology (the “**Demo**”). Confidential Information includes, without limitation: (a) information concerning the Disclosing Party’s technology, software, systems, models, architectures, prompts, agent behaviors, workflows, logic flows, methodologies, designs, documentation, research, development, roadmaps, strategies, and know-how; (b) any source code, object code, pseudocode, scripts, APIs, configurations, parameters, weights, embeddings, training or inference techniques, system outputs, logs, telemetry, analytics, or performance characteristics, whether observed directly or indirectly during the Demo; (c) all demo materials and environments, including prototypes, proofs of concept, beta or test systems, and any outputs, responses, behaviors, or results generated or exhibited during the Demo; (d) any non-public information relating to the existence, content, or substance of the Demo or discussions relating thereto; (e) any information of a client, customer, counterparty, or other third party that is contained in, reflected in, derived from, or associated with any materials disclosed during the Demo, including without limitation legal documents, pleadings, contracts, agreements, discovery materials, correspondence, or internal memoranda, whether or not such materials are anonymized, scrubbed, or marked as confidential (“**Third-Party Confidential Information**”); (f) any notes, summaries, analyses, screenshots, recordings, extracts, compilations, or derivative materials prepared by or for the Recipient that contain, reflect, or are based on any Confidential Information. Confidential Information shall be deemed confidential whether or not it is marked or identified as confidential at the time of disclosure and whether disclosed intentionally or inadvertently. Confidential Information does not include information that the Recipient can demonstrate by written records: (i) is or becomes publicly available through no breach of this Agreement by Recipient; (ii) is rightfully received by Recipient from a third party without restriction and without breach of any obligation of confidentiality; or (iii) is independently developed by Recipient without use of or reference to any Confidential Information.

2. Confidentiality of Information Use. The Recipient shall keep all Confidential Information strictly confidential and shall not, without the prior written consent of the Disclosing Party, disclose any Confidential Information to any person, except as expressly permitted by this Agreement and only in accordance with the notice and cooperation provisions set forth herein. The Recipient shall not use any Confidential Information for any purpose other than the Approved Purpose. The Recipient shall take reasonable and appropriate measures to protect the Confidential Information from unauthorized access,

disclosure, or use, and shall exercise at least the same degree of care as it uses to protect its own confidential information of a similar nature, but in no event less than reasonable care. The Recipient shall not disclose Confidential Information to any third party (including any employee, contractor, advisor, or other representative) without the Disclosing Party's prior written consent. If such consent is given, the Recipient shall ensure that any permitted recipient is informed of the confidential nature of the Confidential Information and is bound by confidentiality obligations at least as protective as those set forth in this Agreement. The Recipient shall be responsible for any breach of this Agreement by any person to whom it discloses Confidential Information. Nothing in this Agreement shall prohibit the Recipient from independently developing or acquiring products, services, or technologies similar to those discussed during the Demo, provided that such development or acquisition does not use, rely upon, or disclose any Confidential Information in violation of this Agreement.

3. Legally Required Disclosure. In the event that the Recipient or any of its Representatives are required by Legal Requirement to disclose any of the Confidential Information of the Disclosing Party, the Recipient or its Representative, as applicable, may, without violation of this Agreement, disclose such Confidential Information, provided that the Recipient will, to the extent reasonably practicable and permitted by Legal Requirement, notify the Disclosing Party promptly in writing so that the Disclosing Party may seek a protective order or other appropriate remedy or, in the Disclosing Party's sole discretion, waive compliance with the terms of this Agreement, and the Recipient will cooperate (at the Disclosing Party's sole expense) in such efforts as reasonably requested by the Disclosing Party. In the event that no such protective order or other remedy is obtained, or the Disclosing Party waives compliance with the terms of this Agreement, the Recipient and its Representatives will furnish only that portion of the Confidential Information which the Recipient or its Representative is required to disclose by Legal Requirement. Notwithstanding the foregoing, nothing in this Agreement shall require the Recipient or its Representative to notify the Disclosing Party of, or obtain the Disclosing Party's consent for, any disclosure made to a bank examiner, regulatory examiner, or self-regulatory examiner in the course of such examiner's examination, inspection, or audit, and any such disclosure shall not be a breach of this Agreement, provided that such examination, inspection or audit was not specifically targeting the Disclosing Party, the AI Discussion or the Confidential Information.

4. Return of Confidential Information. Upon the Disclosing Party's written request, the Recipient shall promptly cease use of all Confidential Information and either return or permanently destroy all Confidential Information in its possession or control, including any copies, screenshots, notes, summaries, or derivative materials, and certify such return or destruction in writing upon request.

5. Rights with respect to Confidential Information. All Confidential Information of the Disclosing Party is and will remain the property of the Disclosing Party. Nothing contained in this Agreement will be construed as granting or conferring any rights by license or otherwise, either express, implied or by estoppel, in or to any Confidential Information of the Disclosing Party, or under any patent, copyright, trademark, trade secret or other intellectual property right or any other right of the Disclosing Party, except the right to use such Confidential Information for the Approved Purpose. The Disclosing Party makes no representations or warranties in this Agreement as to the accuracy or completeness of the Confidential Information. Nothing in this Agreement will be construed to require either party to disclose any Confidential Information to the other party, and each party retains the right to determine, in its sole discretion, what information, properties, and personnel to make available to Recipient and its Representatives.

6. Right to Disclose Information. The Disclosing Party warrants that it has and will have all rights to disclose the information that will be disclosed by it in the framework of the discussions between the parties regarding the AI Discussion. Without limiting the foregoing, the Recipient shall not use any Confidential Information, directly or indirectly, for the purpose of training, fine-tuning, evaluating,

benchmarking, validating, improving, or otherwise developing any artificial intelligence, machine learning, automated system, model, or agent, nor for the purpose of creating any product or service that competes with or is functionally similar to the Disclosing Party's products or services.

7. Miscellaneous.

(a) Severability. If any provision of this Agreement shall, for any reason, be adjudged by any court of competent jurisdiction to be invalid or unenforceable, such judgment shall not affect, impair or invalidate the remainder of this Agreement but shall be confined in its operation to the provision of this Agreement directly involved in the controversy in which such judgment shall have been rendered. The parties will substitute for any invalid or unenforceable provision a suitable and equitable provision that carries out, so far as may be valid and enforceable, the intent and purpose of such invalid or unenforceable provision.

(b) Assignment; Successors and Assigns. This Agreement will not be assignable or transferable by either ZOE AI or the Counterparty without the prior written consent of the other, and any purported assignment or transfer without such consent shall be null and void ab initio and of no effect. Subject to the foregoing, this Agreement shall be binding upon, and shall inure to the benefit of, the parties hereto and their respective successors and permitted assigns.

(c) Modifications to Agreement; Waivers. No amendments or modifications of or changes to this Agreement or waiver of the terms and conditions hereof will be binding upon the Counterparty or ZOE AI, unless approved in writing and signed by both the Counterparty and ZOE AI. No failure or delay in exercising any right, power or privilege hereunder will operate as a waiver thereof, nor will any single or partial exercise thereof preclude any other or further exercise thereof or the exercise of any right, power or privilege hereunder.

(d) Governing Law; Venue; JURY TRIAL WAIVER. This Agreement will be governed by and construed in accordance with the laws of the State of New York, without regard to the principles of conflict of laws thereof. Any action, claim, suit or other legal proceeding relating to this Agreement shall be brought exclusively in the state or federal courts located in New York County, State of New York (or any appellate courts therefrom). The parties expressly waive any objection based on personal jurisdiction, venue or forum non conveniens. EACH PARTY HEREBY IRREVOCABLY WAIVES ALL RIGHTS TO TRIAL BY JURY IN ANY ACTION, CLAIM, SUIT, PROCEEDING OR COUNTERCLAIM (WHETHER BASED ON CONTRACT, TORT OR OTHERWISE) ARISING OUT OF OR RELATING TO THIS AGREEMENT OR THE ACTIONS OF SUCH PARTY IN THE NEGOTIATION, ADMINISTRATION, PERFORMANCE AND ENFORCEMENT HEREOF.

(e) Remedies. Recipient acknowledges that due to the unique nature of the Confidential Information, there may not be an adequate remedy at law for any breach of its obligations hereunder, and that upon any such breach or threatened breach, the Disclosing Party will be entitled to seek appropriate equitable relief in addition to whatever remedies it might have at law. The rights and remedies provided in this Agreement are cumulative and not exclusive of any other right or remedy now or hereafter available to a party in law or in equity.

(f) Termination. Each party's obligations hereunder with respect to IP Confidential Information shall terminate on the third (3rd) anniversary of the date of this Agreement; *provided that* all other Confidential Information shall terminate on the second (2nd) anniversary of the date of this Agreement; *provided further* that all matters related to the foregoing in respect of which a claim has been made or an action or proceeding has been instituted on or prior to such date shall survive the expiration of such period until such claim, action or proceeding is finally resolved.

(g) Entire Agreement. This Agreement constitutes the full and entire understanding and agreement between the parties with regard to the subject matter of this Agreement and supersedes all prior understandings or agreements with respect thereto. If there is any inconsistency between this Agreement and the terms and conditions of any agreement that a Recipient or any of its Representatives must “click through” for online or electronic access to any Confidential Information, then the terms and conditions of this Agreement shall govern in all respects.

(h) Notices. All notices, consents and waivers under this Agreement shall be in writing and may be delivered in person, by facsimile or email (with affirmative confirmation of receipt), by reputable, nationally recognized overnight courier service or by registered or certified mail, in each case to the applicable party at the following addresses (or at such other address for a party as shall be specified by like notice): (i) if to ZOE AI, to: 16192 Coastal Highway, Lewes, Delaware 19958, by telephone to 818-835-1233, or by email to: williamwei@zoemachine.com (ii) if to the Counterparty, to its address as set forth under its name on the signature page hereto.

(i) Interpretation. The headings set forth in this Agreement are for convenience of reference only and shall not be used in interpreting this Agreement. In this Agreement: (i) whenever required by the context, any pronoun used in this Agreement shall include the corresponding masculine, feminine or neuter forms, and the singular form of nouns, pronouns and verbs shall include the plural and vice versa; (ii) the term “including” (and with correlative meaning “include”) shall be deemed in each case to be followed by the words “without limitation”; and (iii) the words “herein”, “hereto” and “hereby” and other words of similar import in this Agreement shall be deemed in each case to refer to this Agreement as a whole and not to any particular portion of this Agreement. As used in this Agreement, the term: (x) “person” shall refer to any individual, corporation, partnership, trust, limited liability Counterparty or other entity or association, including any governmental or regulatory body, whether acting in an individual, fiduciary or any other capacity; and (y) “affiliate” shall mean, with respect to any specified person, any other person or group of persons acting together that, directly or indirectly, through one or more intermediaries controls, is controlled by or is under common control with such specified person (where the term “control” (and any correlative terms) means the possession, direct or indirect, of the power to direct or cause the direction of the management and policies of such person, whether through the ownership of voting securities, by contract or otherwise).

(j) Counterparts. This Agreement may be executed in any number of counterparts, including by facsimile, pdf or other electronic document transmission, each of which shall be an original, but all of which together shall constitute one instrument.

[Remainder of Page Intentionally Left Blank; Signature page follows]

IN WITNESS WHEREOF, the parties hereto have caused this Mutual Nondisclosure Agreement to be executed and delivered as of the date first written above.

ZOE AI:

ZOE AI, Inc.

By: /s/William Wei
Name: William Wei
Title: CEO and Chief Architect

The Counterparty:

By: _____
Name:
Title:

Address for Notice:

Attn: _____
Telephone No: _____
Facsimile No: _____
Email: _____